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Court of Appeals  
Division II  
State of Washington  
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No.57341-5-II

IN THE COURT OF APPEALS  
OF THE STATE OF WASHINGTON  
DIVISION II

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STATE OF WASHINGTON,  
Respondent,

v.

DUSTIN GRIFFIN  
Appellant,

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REPLY BRIEF OF APPELLANT

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Suzanne Lee Elliott,  
WSBA # 12634  
Washington Appellate Project  
1511-Third Ave. Suite 610  
Seattle WA 98101  
206-587-2711  
suzanne@wash.app.org

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## I. REPLY ARGUMENT

### 1. THIS COURT ORDERED A RESENTENCING.

Unless the reviewing court restricts resentencing to narrow issues, any resentencing should be *de novo*. *State v. Dunbar*, - Wash. App. - , 532 P.3d 652, 656 (2023). During the resentencing, the resentencing judge may consider rulings by another judge during the sentencing of the offender, but the resentencing judge should exercise independent discretion. *Id.*

This Court remanded for a resentencing. That is the law of the case. The State failed to bring Mr. Griffin to court for the resentencing hearing mandated by this Court. This case is not about whether or the trial judge would impose the same sentence again. It is about the fairness and integrity of the sentencing proceedings mandated by this Court in the previous appeal.

While it is true there was a lawyer in the courtroom, Mr. Griffin was prevented from speaking freely with his attorney during the hearing. Instead, Mr. Griffin was surprised a sentencing hearing had been set. The lawyer had not met with him before the sentencing hearing. Mr. Griffin was given only 34 minutes to “meet” with his lawyer who was hundreds of miles away. But even then his lawyer refused to support Mr. Griffin’s request that he be physically present in the courtroom.

2. THE STATE FAILS TO CITE ANY CASE THAT PERMITS A COURT TO PROCEED TO RESENTENCE A DEFENDANT WHEN HE OBJECTS TO NOT BEING PHYSICALLY PRESENT IN THE COURTROOM.

The State fails to discuss or distinguish *State v. Ramos*, 171 Wash. 2d 46, 48, 246 P.3d 811 (2011), which unequivocally held a defendant has a constitutional right to be present at sentencing, including resentencing. *State v. Anderson*, 19 Wash. App. 2d 556, 561--62, 497 P.3d 880 (2021), review denied, 199 Wash. 2d 1004, 504 P.3d 832 (2022) says nothing about a defendant's right to be present at sentencing because, unlike Mr. Griffin, Mr. Anderson did not object and thus, waived the issue.

The State fails to cite to any emergency order by the Washington Supreme Court expressly stating a court could hold a sentencing hearing when the defendant was not physically present in the courtroom over the defendant's objection. Moreover, Mr. Griffin's resentencing hearing was held September 9, 2022. At that time all of the other participants were in the courtroom. The Governor's Covid Emergency Orders ended just a few weeks later. <https://governor.wa.gov/news/2022/states-covid-emergency-order-ends-next-week>, last viewed August 11, 2023.

This Court should not accept the excuse that Covid 19 presents the courts with the indefinite ability to force defendants into video-conferenced appearances. Some defendants and counsel prefer to appear remotely with the proper waivers. Some do not. The State fails to cite to any case that approves of a sentencing where the defendant was not physically present for sentencing, objected and the trial court proceeded anyway.

In essence the State's argument is that it is more convenient and less expensive to conduct criminal hearing remotely. Accepting the State's position would mean that judicial convenience trumps the defendant's constitutional rights.

### 3. APPEARING ON VIDEO IS NOT "PRESENCE."

Other courts that have considered this issue have held there is a vital but intangible value in having the defendant and the sentencing judge in the same room, meeting eye-to-eye at sentencing.

From thirty years of federal sentencing, I can attest to the importance of seeing the defendant in the same room at sentencing. Physical presence makes unavoidable the recognition that—in sentencing—one human being sits in judgment of another, with a dramatic impact on the future of a living, breathing person, not just a face on a screen.

*United States v. Fagan*, 464 F. Supp. 3d 427, 430 (D. Me. 2020)(footnotes omitted). Another court explained that:

[b]eing physically present in the same room with another has certain intangible and difficult to articulate effects that are wholly absent when communicating by video conference. As written, [Rule 43] reflects a firm judgment in favor of physical presence and does not permit the use of video conferencing as a substitute.

*United States v. Williams*, 641 F.3d 758, 764-65 (6th Cir. 2011). See also *United States v. Lawrence*, 248 F.3d 300, 304 (4th Cir. 2001) (stating that federal Rule 43 reflects the policy that “virtual reality is rarely a substitute for actual presence and that, even in an age of advancing technology, watching an event on the screen remains less than the complete equivalent of actually attending it”); *United States v. Navarro*, 169 F.3d 228, 236 (5th Cir. 1999) (finding that presence meant physical presence and not “within sight and call”).

State courts agree:

Not only do in-person proceedings allow the court to gauge the veracity of a defendant during the hearing (including, perhaps most importantly, while listening to and watching defendant's allocution), but the formality of the courtroom and the presence of the attorneys, judge, and staff provide a solemn stage for such important decisions. Remote proceedings, despite the greatly

improved and available technologies, simply do not compare to face-to-face interaction.

*People v. Anderson*, 341 Mich. App. 272, 286, 989 N.W.2d 832 (2022).

Some courts have gone so far as require a defendant to show “good cause,” in order *waive* his presence at sentencing and have denied waivers where such circumstances have not been shown. *United States v. Wright*, 342 F. Supp. 2d 1068, 1070 (M.D. Ala. 2004).

The State fails to cite to a single case that concludes that appearing via video is “presence” as contemplated by the state or federal constitution. Rather the State argues any error was “harmless.” But, under the authorities cited above, it can never be harmless for one human being to sit in judgment of another without meeting him face-to-face and contemplating the dramatic impact a sentence would have on the future of a living, breathing person, rather than simply viewing a disembodied face on a screen.

## **II. CONCLUSION**

This Court should remand for resentencing and order the State to bring Mr. Griffin to the courtroom for resentencing.

I certify this brief is 1,043 words.

DATED this 15th day of August 2023.

Respectfully submitted,

/s/ Suzanne Lee Elliott

Suzanne Lee Elliott, WSBA #12634

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The undersigned certifies under penalty of perjury under the laws of the State of Washington that on the below date, the original of the document to which this declaration is affixed/attached, was filed in the **Court of Appeals – Division Two** under **Case No. 57341-5-II**, and a true copy was mailed with first-class postage prepaid or otherwise caused to be delivered by other court-approved means to the following attorney(s) or party/parties of record at their regular office / residence / e-mail address as listed on ACORDS / WSBA website:

☒ respondent Eric Bentson  
[bentsone@cowlitzwa.gov]  
[appeals@co.cowlitz.wa.us]  
Cowlitz County Prosecutor's Office

☐ appellant

☐ Attorney for other party



MARIA ANA ARRANZA RILEY, Paralegal  
Washington Appellate Project

Date: August 15, 2023

# WASHINGTON APPELLATE PROJECT

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Sender Name: MARIA RILEY - Email: maria@washapp.org

**Filing on Behalf of:** Suzanne Lee Elliott - Email: suzanne@washapp.org (Alternate Email: wapofficemail@washapp.org)

Address:  
1511 3RD AVE STE 610  
SEATTLE, WA, 98101  
Phone: (206) 587-2711

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